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No. 19–7963. *YISRAEL v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Fla. Certiorari denied.

No. 19–7965. *EDNEY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–7971. *LEWIS v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 19–7972. *BROWN v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 182.

No. 19–7974. *MORENO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7976. *FLEMING v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7977. *HOFF v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7978. *DELGADO, AKA DELGADO-PINA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 798 Fed. Appx. 105.

No. 19–7979. *CHADWICK v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 795.

No. 19–7981. *CASTANEDA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–7984. *PEREDA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 499.

No. 19–7988. *BAPTISTE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 935 F. 3d 1304.

No. 19–8003. *HOOVER v. NDOH, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 295.

No. 19–8017. *CANCINO ET AL. v. CAMERON COUNTY, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 414.

No. 19–8035. *DE JESUS VALENCIA v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 19–8092. *PADILLA v. BARR, ATTORNEY GENERAL*. C. A. 11th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 956.

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No. 19–8131. *SHERON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 332.

No. 19–8139. *DURAN CERRITOS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 826.

No. 19–8154. *STAMP v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 680.

No. 19–8155. *SAUNDERS v. JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8158. *HEINDENSTROM v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 946 F. 3d 57.

No. 19–8172. *CARSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 238.

No. 19–8173. *ST. CLAIRE v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–8178. *NORRIS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 942 F. 3d 902.

No. 19–8187. *POTTS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 947 F. 3d 357.

No. 19–8188. *HAMILTON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 800 Fed. Appx. 476.

No. 19–8193. *PURIFOY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 291.

No. 19–8218. *PAZ-ALVAREZ v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

*Rehearing Denied*

No. 19–670. *FLECK v. WETCH ET AL.*, 589 U. S. 1263;

No. 19–1041. *KHRAPKO v. SPLAIN ET AL.*, 589 U. S. 1278;

No. 19–6442. *YEAGER v. NATIONAL PUBLIC RADIO ET AL.*, 589 U. S. 1124;

No. 19–6928. *LOFTON v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION*, 589 U. S. 1215;

No. 19–6982. *COLLINS v. BARNES & THORNBURG LLP ET AL.*, 589 U. S. 1217;

No. 19–7173. *ROSE v. UNITED STATES*, 589 U. S. 1222;

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No. 19–7199. *TOOLY v. SCHWALLER*, 589 U. S. 1223;  
No. 19–7204. *WILSON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.*, 589 U. S. 1266;  
No. 19–7229. *LOWE v. PARRIS ET AL.*, 589 U. S. 1266;  
No. 19–7318. *YABLONSKY v. CALIFORNIA*, 589 U. S. 1227;  
No. 19–7383. *MAY v. ARKANSAS*, 589 U. S. 1282;  
No. 19–7409. *PRYOR v. UNITED STATES*, 589 U. S. 1267;  
No. 19–7509. *IN RE MATTISON*, 589 U. S. 1201; and  
No. 19–7606. *McKINNON v. FLORIDA* (two judgments), 589 U. S. 1285. Petitions for rehearing denied.

No. 19–392. *ARMSTRONG v. SECURITIES AND EXCHANGE COMMISSION ET AL.*, 589 U. S. 1269. Petition for rehearing denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

MAY 6, 2020

*Miscellaneous Order*

No. 19A1032. *FRIENDS OF DEVITO ET AL. v. WOLF, GOVERNOR OF PENNSYLVANIA, ET AL.* Sup. Ct. Pa. Application for stay, presented to JUSTICE ALITO, and by him referred to the Court, denied.

MAY 14, 2020

*Miscellaneous Order*

No. 19A1034. *VALENTINE ET AL. v. COLLIER, EXECUTIVE DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, ET AL.* C. A. 5th Cir. Application to vacate stay, presented to JUSTICE ALITO, and by him referred to the Court, denied.

Statement of JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, respecting the denial of application to vacate stay.

In this lawsuit, inmates in a Texas geriatric prison allege that their facility failed to protect them from the dangers of COVID–19. The District Court heard un rebutted testimony about the imminent dangers faced by the inmates, some of whom have already died. It also heard testimony about the facility’s lackluster efforts to keep the illness from spreading and held that the facility’s inexplicable failures amounted to deliberate indifference for its elderly inmates in violation of the Eighth Amendment. On that basis, it issued an injunction requiring the prison to follow

an extensive protocol, including frequent cleaning and increased education efforts. 2020 WL 1899 274 (SD Tex., Apr. 16, 2020). The Court of Appeals for the Fifth Circuit stayed that injunction pending appeal, and the inmates now seek to vacate that stay in this Court. 956 F. 3d 797 (2020) (*per curiam*).

Notably, where the Court is asked to undo a stay issued below, the bar is high. Among other things, applicants must show that the lower court was “‘demonstrably wrong in its application of accepted standards in deciding to issue the stay.’” *Western Airlines, Inc. v. Teamsters*, 480 U. S. 1301, 1305 (1987) (O’Connor, J., in chambers). The Fifth Circuit ruled, among other things, that the prison was substantially likely to succeed on its claim that the inmates failed to exhaust their remedies as required by the Prison Litigation and Reform Act of 1995 (PLRA), 110 Stat. 1321–71, 42 U. S. C. §1997e(a). Under the circumstances of this case, where the inmates filed a lawsuit before filing any grievance with the prison itself, it is hard to conclude that the Fifth Circuit was demonstrably wrong on this preliminary procedural holding.

I write separately to highlight the disturbing allegations presented below. Further, where plaintiffs demonstrate that a prison grievance system cannot or will not respond to an inmate’s complaint, they could well satisfy an exception to the PLRA’s exhaustion requirement. Finally, while States and prisons retain discretion in how they respond to health emergencies, federal courts do have an obligation to ensure that prisons are not deliberately indifferent in the face of danger and death.

## I

The facility at issue (the Pack Unit) houses about 1,200 inmates, more than 800 of whom are 65 or older. As the District Court found, the risk of COVID–19 spreading in the Pack Unit is particularly high. The facility is a dormitory-style prison, with each inmate separated only by a short, cubicle-style half wall. When the District Court issued its ruling, COVID–19 had already begun to spread in the facility. On April 11, 2020, one inmate, Leonard Clerkly, was transferred to the hospital because of difficulty breathing, a symptom the hospital linked to COVID–19. He was pronounced dead mere hours later.

Before and after Clerkly’s death, prison administrators began implementing policies to control the spread of COVID–19. For instance, the prison placed all inmates on a precautionary lockdown

and began taking some inmates' temperatures twice a day. It also established a policy of providing inmates with cloth masks to be changed daily and instructed inmates to request additional soap at no cost. But the District Court found that the facility inexplicably failed to comply with some of its self-declared policies.

The District Court heard unrefuted testimony that, despite the prison's claim of enhanced cleaning measures, its cleaning protocol in practice remained virtually the same. The facility neither increased the number of inmate janitors nor ensured that the existing janitors did their jobs safely and effectively. One janitor testified that, just as before the pandemic, the cleaning solution provided to the cleaning crews was frequently depleted by mid-afternoon, only halfway through a shift. Each day he received only one pair of gloves to share with his cojanitor, an arrangement medical experts described as tantamount to no gloves at all. 455 F. Supp. 3d 308, 316–318, 322–323 (SD Tex. 2020).

The facility's failures to comply with its own safety protocol became even clearer after Clerkly's death. Prison policies required that any inmate showing signs of COVID-19 be "triaged" and "placed in medical isolation" and that all areas used by the symptomatic inmate be thoroughly disinfected. *Id.*, at 323–324. Yet even though Clerkly had difficulty breathing and died only a few hours after being transported to the hospital, the prison "made no representations" to the District Court that "they identified Mr. Clerkly as symptomatic, evaluated him for potential COVID-19 infection, or isolated or treated him for COVID-19 at any point before his transport to the hospital on the day of his death." *Id.*, at 324. In fact, the prison "did not implement further precautionary measures until three days after Mr. Clerkly's death." *Ibid.* In the meantime, while the prison waited for a positive COVID-19 test that seemed certain to come, "countless inmates were knowingly exposed to a serious substantial risk of harm." *Ibid.*

## II

Having heard testimony from several witnesses from the Pack Unit and from prison experts who declared the Pack Unit practices "woefully inadequate," the District Court held that applicants were likely to succeed on their Eighth Amendment claim. *Id.*, at 325. The court noted the "obvious" risk of COVID-19 to the older men in the Pack Unit and reasoned that the prison's

failure to take basic steps, many of which were required by its own policies, evinced deliberate indifference. *Id.*, at 322, 327. The District Court then ordered the prison to mitigate the harm to inmates, including through some measures recommended by an expert witness who had managed prisons himself. *Id.*, at 317–319, 321–326; 2020 WL 1899274.

Despite the District Court’s detailed, careful findings, based on live testimony and the court’s own visit to the Pack Unit, the Fifth Circuit stayed the injunction. The Fifth Circuit noted that the prison had submitted evidence of “the protective measures it ha[d] taken as a result” of the COVID–19 pandemic, and so the question was simply whether the Eighth Amendment required the prison “to do more.” 956 F. 3d, at 801–802.<sup>1</sup> But in crediting the prison’s assurances, the Fifth Circuit did not address all of the District Court’s factual findings that the prison had inexplicably discarded its own rules and, in doing so, evinced deliberate indifference to the medical needs of its inmates.<sup>2</sup> See *Farmer v. Brennan*, 511 U. S. 825, 842 (1994) (noting that deliberate indifference is a question of fact often made out by “inference from circumstantial evidence”). The Fifth Circuit may have acted outside its authority in refusing to defer to those factual findings. See *Anderson v. Bessemer City*, 470 U. S. 564, 573 (1985). Similarly, while the Fifth Circuit faulted the District Court for issuing

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<sup>1</sup>One member of the Fifth Circuit panel concurred in judgment. See 956 F. 3d, at 806 (opinion of Higginson, J.). The concurrence reasoned that the inmates were unlikely to prevail on exhaustion, but noted that a merits panel could find on a full record that an exception to the PLRA’s exhaustion requirement applied. The concurrence also argued that the motions panel should not have addressed the merits of the inmates’ “intensely fact-based” claims in light of the District Court’s “extensive and careful findings of fact that mitigation deficiencies still exist” in the prison. *Id.*, at 807–808.

<sup>2</sup>The Fifth Circuit also faulted the District Court for imposing standards higher than those recommended by the Centers for Disease Control and Prevention (CDC). But as the District Court noted, the CDC Guidelines themselves caution that they “may need to be adapted based on individual facilities’ physical space, staffing, population, operations, and other resources and conditions.” 455 F. Supp. 3d 308, 325 (SD Tex. 2020) (internal quotation marks omitted). Given the particular vulnerabilities of the inmates in the Pack Unit, even counsel for the prison admitted that steps beyond those prescribed by the CDC may be necessary. *Ibid.* And, of course, the District Court found that the prison was regularly failing to comply with standards far below what the CDC suggests. Much of its injunction targeted that behavior.

an admittedly exacting injunction, that injunction too was rooted in equally detailed factfinding regarding the prison's failure to live up to its promises.

Also concerning was some of the Fifth Circuit's language regarding exhaustion. This Court has made clear that the PLRA requires exhaustion only of "available" judicial remedies. *Ross v. Blake*, 578 U. S. 632, 642 (2016). "[T]he ordinary meaning of the word 'available' is 'capable of use for the accomplishment of a purpose.'" *Ibid.* (some internal quotation marks omitted). Thus, when a grievance procedure is a "dead end"—when "the facts on the ground" indicate that the grievance procedure provides no possibility of relief—the procedures may well be "unavailable." *Id.*, at 643.

The Fifth Circuit seemed to reject the possibility that grievance procedures could ever be a "dead end" even if they could not provide relief before an inmate faced a serious risk of death. But if a plaintiff has established that the prison grievance procedures at issue are utterly incapable of responding to a rapidly spreading pandemic like COVID-19, the procedures may be "unavailable" to meet the plaintiff's purposes, much in the way they would be if prison officials ignored the grievances entirely. *Ibid.* Here, of course, it is difficult to tell whether the prison's system fits in that narrow category, as applicants did not attempt to avail themselves of the grievance process before filing suit. But I caution that in these unprecedented circumstances, where an inmate faces an imminent risk of harm that the grievance process cannot or does not answer, the PLRA's textual exception could open the courthouse doors where they would otherwise stay closed.

### III

While I disagree with much of the Fifth Circuit's analysis at this preliminary juncture, the court required reports every 10 days on the status of the inmates in the prison's care. I expect that it and other courts will be vigilant in protecting the constitutional rights of those like applicants. As the circumstances of this case make clear, the stakes could not be higher. Just a few nights ago, respondents revealed that "numerous inmates and staff members" at the Pack Unit "are now COVID-19 positive and the vast majority of those tested positive within the past two weeks." Supp. Brief Regarding Emergency Application 1.

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Nothing in this Court's order, of course, prevents the Fifth Circuit from amending its stay. Nor does anything in our order prevent applicants from seeking new relief in the District Court, as appropriate, based on changed circumstances. Finally, administrative convenience must be balanced against the risk of danger presented by emergency situations. The prison, for example, has failed to explain why it could not simply decrease dorm density, despite having an empty unit at its disposal.

It has long been said that a society's worth can be judged by taking stock of its prisons. That is all the truer in this pandemic, where inmates everywhere have been rendered vulnerable and often powerless to protect themselves from harm. May we hope that our country's facilities serve as models rather than cautionary tales.

MAY 18, 2020

*Certiorari Granted—Vacated and Remanded*

No. 19–864. *BEERS v. BARR, ATTORNEY GENERAL, ET AL.* C. A. 3d Cir. Certiorari granted, judgment vacated, and case remanded with instructions to dismiss the case as moot. See *United States v. Munsingwear, Inc.*, 340 U. S. 36 (1950). Reported below: 927 F. 3d 150.

*Certiorari Dismissed*

No. 19–7866. *POPAL v. BROWN.* C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–7905. *ARUNACHALAM v. EXXON MOBIL CORP.* C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–7910. *ARUNACHALAM v. INTUIT, INC.* C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–7935. *BALL v. CITY OF MARION, ILLINOIS.* Sup. Ct. Ill. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–7953. *LOPEZ v. LOPEZ.* Ct. App. Cal., 4th App. Dist., Div. 3. Motion of petitioner for leave to proceed *in forma pau-*



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*peris* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–8029. ARUNACHALAM *v.* LYFT, INC. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. THE CHIEF JUSTICE took no part in the consideration or decision of this motion and this petition.

No. 19–8064. WEEKS *v.* PAYNE, WARDEN, ET AL. Sup. Ct. Mo. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 19–8211. BANKS *v.* BRAUN ET AL. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–8252. CHAMBERS *v.* HARDY ET AL. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

#### *Miscellaneous Orders*

No. 19M136. IN RE STARLING. Motion for leave to proceed as a veteran denied.

No. 19M137. ROSAS *v.* UNIVERSITY OF TEXAS AT SAN ANTONIO ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19–8037. RUTTKAMP *v.* BANK OF NEW YORK MELLON, FKA BANK OF NEW YORK. App. Ct. Conn.; and

No. 19–8061. WEIXING WANG *v.* MARCOTTE. Sup. Ct. N. H. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until June 8, 2020, within which to pay the docketing fees required by this Court's Rule 38(a).

No. 18–9554. IN RE ALLEN;

No. 19–1226. IN RE BAMDAD;

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No. 19–8282. IN RE WATSON; and

No. 19–8285. IN RE WILLIAMS. Petitions for writs of habeas corpus denied.

No. 19–8345. IN RE CIOTTA. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court’s Rule 39.8. As petitioner has repeatedly abused this Court’s process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 19–7938. IN RE TOWNSEND. Petition for writ of mandamus denied.

No. 19–7885. IN RE FINDLAY. Petition for writ of prohibition denied.

*Certiorari Denied*

No. 19–55. RICHARDS *v.* BARRETT, SECRETARY OF THE AIR FORCE, ET AL. C. A. Armed Forces. Certiorari denied.

No. 19–605. ARIZONA *v.* MARTIN. Sup. Ct. Ariz. Certiorari denied. Reported below: 247 Ariz. 101, 446 P. 3d 806.

No. 19–682. KELSAY *v.* ERNST. C. A. 8th Cir. Certiorari denied. Reported below: 933 F. 3d 975.

No. 19–815. PHOENIX *v.* REGIONS BANK. C. A. 11th Cir. Certiorari denied. Reported below: 936 F. 3d 1184.

No. 19–849. DYROFF, INDIVIDUALLY AND ON BEHALF OF THE ESTATE OF GREER *v.* ULTIMATE SOFTWARE GROUP, INC. C. A. 9th Cir. Certiorari denied. Reported below: 934 F. 3d 1093.

No. 19–859. FORCE ET AL. *v.* FACEBOOK, INC. C. A. 2d Cir. Certiorari denied. Reported below: 934 F. 3d 53.

No. 19–912. ROBLES *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 19–1006. FACEBOOK, INC., ET AL. *v.* SUPERIOR COURT OF CALIFORNIA, SAN FRANCISCO COUNTY, ET AL. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied.

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No. 19–1049. *BOLIVARIAN REPUBLIC OF VENEZUELA ET AL. v. CRYSTALLEX INTERNATIONAL CORP.* C. A. 3d Cir. Certiorari denied. Reported below: 932 F. 3d 126.

No. 19–1079. *M. W. WATERMARK, LLC, ET AL. v. EVOQUA WATER TECHNOLOGIES, LLC.* C. A. 6th Cir. Certiorari denied. Reported below: 940 F. 3d 222.

No. 19–1081. *ROSENBLATT v. CITY OF SANTA MONICA, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 940 F. 3d 439.

No. 19–1088. *FOX v. MILLER, CHAPTER 7 TRUSTEE.* C. A. 9th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 688.

No. 19–1093. *CLARKSTON ET AL. v. WHITE.* C. A. 5th Cir. Certiorari denied. Reported below: 943 F. 3d 988.

No. 19–1095. *BEGGS ET UX. v. STORY ET AL.* Sup. Ct. Va. Certiorari denied.

No. 19–1096. *MULTIVENTAS Y SERVICIOS, INC., ET AL. v. ORIENTAL BANK.* Sup. Ct. P. R. Certiorari denied.

No. 19–1109. *YOAKUM v. SABRE GLBL INC.* C. A. 5th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 176.

No. 19–1111. *DEEM v. DiMELLA-DEEM ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 941 F. 3d 618.

No. 19–1112. *JONES v. EDER ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 327.

No. 19–1114. *NATIONAL COLLEGIATE ATHLETIC ASSN. ET AL. v. NEW JERSEY THOROUGHBRED HORSEMEN’S ASSN., INC.* C. A. 3d Cir. Certiorari denied. Reported below: 939 F. 3d 597.

No. 19–1117. *MALUKAS v. BARR, ATTORNEY GENERAL.* C. A. 7th Cir. Certiorari denied. Reported below: 940 F. 3d 968.

No. 19–1119. *SAUK PRAIRIE CONSERVATION ALLIANCE v. DEPARTMENT OF THE INTERIOR ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 944 F. 3d 664.

No. 19–1122. *HONG TANG v. UNIVERSITY OF BALTIMORE ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 254.

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No. 19–1128. *MENDES DA COSTA v. PEREIRA ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 792 Fed. Appx. 865.

No. 19–1129. *FOTE v. IANCU, DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE.* C. A. Fed. Cir. Certiorari denied. Reported below: 784 Fed. Appx. 781.

No. 19–1132. *BLACKBIRD TECH LLC, DBA BLACKBIRD TECHNOLOGIES v. HEALTH IN MOTION LLC, DBA INSPIRE FITNESS, ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 944 F. 3d 910.

No. 19–1139. *HINES v. REGIONS BANK, FKA UNION PLANTERS BANK, N. A.* C. A. 11th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 853.

No. 19–1150. *KIRCHHOFF v. UNITED STATES ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 193.

No. 19–1161. *HAWKINS v. OHIO.* Sup. Ct. Ohio. Certiorari denied. Reported below: 158 Ohio St. 3d 94, 2019-Ohio-4210, 140 N. E. 3d 577.

No. 19–1168. *MACHALA v. KRAL ET AL.* Ct. App. D. C. Certiorari denied. Reported below: 223 A. 3d 99.

No. 19–1172. *TARGOWSKI v. RAWLINS.* C. A. 8th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 922.

No. 19–1188. *SAMACA, LLC v. CELLAIRIS FRANCHISE, INC., ET AL.* (two judgments). Ct. App. Ga. Certiorari denied.

No. 19–1196. *JOHNSON v. PAULDING COUNTY, GEORGIA, ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 796.

No. 19–1202. *TAFFE ET AL. v. FIRST NATIONAL BANK OF ALASKA.* Sup. Ct. Alaska. Certiorari denied. Reported below: 450 P. 3d 239.

No. 19–1211. *NORTH v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied. Reported below: 800 Fed. Appx. 211.

No. 19–1213. *HAMMERS v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. Reported below: 942 F. 3d 1001.

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No. 19–1228. *KANEKA CORP. v. XIAMEN KINGDOMWAY GROUP CO. ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 767 Fed. Appx. 998.

No. 19–5497. *MCGILL v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–6006. *WILKERSON v. ALABAMA.* Ct. Crim. App. Ala. Certiorari denied.

No. 19–6588. *PEDROZA-ROCHA v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 933 F. 3d 490.

No. 19–6701. *LABAT v. VANNOY, WARDEN.* C. A. 5th Cir. Certiorari denied.

No. 19–6705. *WILKINS v. GALVIN ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–6922. *BATES v. UNITED STATES.* C. A. 6th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 312.

No. 19–7217. *THOMPSON v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 924 F. 3d 1153.

No. 19–7425. *HETTINGA v. ARCADIA MANAGEMENT SERVICES CO.* Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 19–7455. *BUSH v. SHARP, INTERIM WARDEN.* C. A. 10th Cir. Certiorari denied. Reported below: 926 F. 3d 644.

No. 19–7476. *KEMP v. PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION.* C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 489.

No. 19–7553. *HUMBERT v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–7607. *WESTRUM v. NATIONAL LABOR RELATIONS BOARD.* C. A. 8th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 421.

No. 19–7627. *SALGADO MARTINEZ v. SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS.* C. A. 9th Cir. Certiorari denied. Reported below: 926 F. 3d 1215.

No. 19–7645. *GONZALES v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVI-*

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SION. C. A. 5th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 250.

No. 19–7805. *HOLLOMAN v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 274.

No. 19–7882. *HARRIS v. MAY ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 180.

No. 19–7888. *BANKS v. WAFFLE HOUSE, INC.* Sup. Ct. Ga. Certiorari denied.

No. 19–7899. *NIGL v. LITSCHER ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 940 F. 3d 329.

No. 19–7901. *POWERS v. SMITH ET AL.* C. A. 7th Cir. Certiorari denied.

No. 19–7906. *OSBORNE v. GEORGIADES*. C. A. 4th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 220.

No. 19–7907. *OLSEN v. FRANCOIS*. Ct. App. Wis. Certiorari denied. Reported below: 2019 WI App 48, 388 Wis. 2d 475, 934 N. W. 2d 573.

No. 19–7912. *MEHDIPOUR v. SWEENEY ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 847.

No. 19–7913. *PARINEH v. MARTEL, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–7920. *JOHNSON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–7921. *SCOTT v. SUPERIOR COURT OF CALIFORNIA, MONTEREY COUNTY*. C. A. 9th Cir. Certiorari denied.

No. 19–7923. *SMITH v. KENNEDY*. C. A. 5th Cir. Certiorari denied.

No. 19–7924. *STACZ v. ESA MANAGEMENT, LLC, ET AL.* Sup. Ct. Cal. Certiorari denied.

No. 19–7925. *O’ROURKE v. LASHBROOK, WARDEN*. C. A. 7th Cir. Certiorari denied.

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No. 19–7926. *LIN OUYANG v. ACHEM INDUSTRY AMERICA, INC.* Ct. App. Cal., 2d App. Dist., Div. 4. Certiorari denied.

No. 19–7929. *YOST-RUDGE v. A TO Z PROPERTIES, INC., ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 19–7932. *AUCH v. MASSACHUSETTS.* App. Ct. Mass. Certiorari denied. Reported below: 96 Mass. App. 1106, 137 N. E. 3d 1084.

No. 19–7936. *ZAVAGLIA v. BOSTON UNIVERSITY SCHOOL OF MEDICINE.* C. A. 1st Cir. Certiorari denied.

No. 19–7937. *YANEY ET AL. v. MASON ET AL.* Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 19–7943. *J. H. v. E. R. S.* Ct. App. Colo. Certiorari denied. Reported below: 452 P. 3d 174.

No. 19–7954. *LEONHART v. SHOOP, WARDEN.* C. A. 6th Cir. Certiorari denied.

No. 19–7955. *BERRYMAN v. HAAS ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–7959. *TEDESCO v. FERGUSON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GRATERFORD, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 789 Fed. Appx. 293.

No. 19–7961. *THRONEBERRY v. OKLAHOMA.* Ct. Crim. App. Okla. Certiorari denied.

No. 19–7962. *WOMACK v. ROBERTSON, WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 19–7964. *AIZUPITIS v. DELAWARE.* Super. Ct. Del. Certiorari denied.

No. 19–7966. *LANGFORD v. COBB.* C. A. 9th Cir. Certiorari denied.

No. 19–7968. *NDOROMO v. BARR, ATTORNEY GENERAL, ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 19–7969. *MCBRIDE v. BERRY, WARDEN.* C. A. 11th Cir. Certiorari denied.

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No. 19–7973. *CHISOLM v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 227 Md. App. 755.

No. 19–7975. *MYER v. ALL DULLES AREA MUSLIM SOCIETY*. Sup. Ct. Va. Certiorari denied.

No. 19–7980. *PATTERSON v. UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 131.

No. 19–7982. *PENLAND v. OHIO*. Ct. App. Ohio, 1st App. Dist., Hamilton County. Certiorari denied.

No. 19–7983. *NEWTON v. OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-3653.

No. 19–7989. *BRYNER v. CLEARFIELD CITY, UTAH, ET AL.* Ct. App. Utah. Certiorari denied.

No. 19–7990. *ROMAN v. KIM ET AL.* Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 19–7992. *DAVIS v. BANK OF NEW YORK MELLON CORP., AS TRUSTEE FOR SPECIALTY UNDERWRITING AND RESIDENTIAL FINANCE TRUST, SERIES 2005–BC3*. Ct. Civ. App. Ala. Certiorari denied.

No. 19–7994. *BUTLER v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 287 So. 3d 530.

No. 19–7995. *JACKSON v. MAGOON ESTATES LTD. ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8001. *VINAROV v. CITIMORTGAGE, INC.* Sup. Ct. Ill. Certiorari denied.

No. 19–8007. *GABRIEL v. OUTLAW*. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 19–8011. *DELLINGER v. TENNESSEE*. Ct. Crim. App. Tenn. Certiorari denied.

No. 19–8012. *DREVALEVA v. ALAMEDA HEALTH SYSTEM ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 51.

No. 19–8013. *ALEXANDER v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 220 A. 3d 620.



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No. 19–8018. *HUMPHREY v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–8021. *JACKSON v. UTAH ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 782 Fed. Appx. 690.

No. 19–8023. *ORR v. TENNESSEE BUREAU OF INVESTIGATION ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–8024. *HUNSBERGER v. DURAN ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 155.

No. 19–8025. *McKINNEY v. ARKANSAS.* Ct. App. Ark. Certiorari denied. Reported below: 2019 Ark. App. 347, 583 S. W. 3d 399.

No. 19–8028. *GORE v. FLORIDA.* Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 288 So. 3d 1280.

No. 19–8032. *HARRIS v. METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE, ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–8042. *TAYLOR v. FLORIDA.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied.

No. 19–8050. *MERRITT v. UNITED STATES.* C. A. 1st Cir. Certiorari denied. Reported below: 945 F. 3d 578.

No. 19–8051. *HESSIANI v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 658.

No. 19–8057. *BROWN v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 131 N. E. 3d 740.

No. 19–8060. *DOE v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–8081. *ISAAC FLORES v. CALIFORNIA.* Sup. Ct. Cal. Certiorari denied.

No. 19–8087. *JENKINS v. FIELDS, AS ADMINISTRATOR OF THE ESTATE OF JENKINS.* Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-2112.

No. 19–8091. *OFFICER v. WASHINGTON.* Ct. App. Wash. Certiorari denied. Reported below: 9 Wash. App. 2d 1075.

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No. 19–8099. *SMITH v. UTAH*. Ct. App. Utah. Certiorari denied. Reported below: 2019 UT App 141, 449 P. 3d 971.

No. 19–8108. *ALBRECHT v. ALBRECHT*. Sup. Ct. N. H. Certiorari denied.

No. 19–8115. *WHITE v. EDS CARE MANAGEMENT, LLC, ET AL.* Sup. Ct. Mich. Certiorari denied.

No. 19–8122. *WIDDIFIELD v. MAZZA, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–8125. *THOMAS v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 1. Certiorari denied.

No. 19–8127. *TYLER v. HOOKS, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 945 F. 3d 159.

No. 19–8146. *PURISIMA v. SAUL, COMMISSIONER OF SOCIAL SECURITY*. C. A. 3d Cir. Certiorari denied.

No. 19–8151. *ALCOCER ROA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 846.

No. 19–8171. *DAWSON v. BANK OF NEW YORK MELLON ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 816.

No. 19–8184. *WALSH v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 337.

No. 19–8199. *BULLARD v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 937 F. 3d 654.

No. 19–8204. *FOX v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–8212. *SOTO-GARCIA v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 345.

No. 19–8214. *ATKINS v. CROWELL, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 945 F. 3d 476.

No. 19–8215. *RIVERA-MUNOZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 74.

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No. 19–8219. *MEDRANO v. FRAUENHEIM, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 792 Fed. Appx. 422.

No. 19–8220. *MACLI v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8222. *MASON v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. Reported below: 951 F. 3d 567.

No. 19–8228. *MARSH v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 944 F. 3d 524.

No. 19–8231. *JUVENILE MALE v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 792 Fed. Appx. 86.

No. 19–8235. *EATON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 418.

No. 19–8237. *ROMERO-SALGADO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 346.

No. 19–8240. *VALENTINI v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 944 F. 3d 343.

No. 19–8249. *JACKSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 801 Fed. Appx. 941.

No. 19–8250. *GAUSSIRAN v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 458.

No. 19–8254. *DOWELL v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 879.

No. 19–8255. *MEDINA-RODRIGUEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 789 Fed. Appx. 499.

No. 19–8256. *BROWDY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8261. *ATH v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 951 F. 3d 179.

No. 19–8263. *BROWN v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 797 Fed. Appx. 854.

No. 19–8265. *HARTLEY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 131.

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No. 19–8267. *CASCELLA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 943 F. 3d 1.

No. 19–8269. *JAMES v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–8273. *EVANS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 795 Fed. Appx. 956.

No. 19–8274. *SCOTT v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8275. *SWINTON v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 797 Fed. Appx. 589.

No. 19–8277. *AUGUSTIN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–8312. *CANDELARIA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8315. *VINCENT v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–8325. *HUSSEIN v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 18–1421. *NASSAU COUNTY DISTRICT ATTORNEY’S OFFICE v. ORLANDO*. C. A. 2d Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 915 F. 3d 113.

No. 19–835. *VALERO ENERGY CORP. ET AL. v. ENVIRONMENTAL PROTECTION AGENCY* (two judgments). C. A. D. C. Cir. Motion of National Association of Home Builders of the United States for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 936 F. 3d 628 (first judgment); 937 F. 3d 559 (second judgment).

No. 19–867. *WEXFORD HEALTH ET AL. v. GARRETT*. C. A. 3d Cir. Certiorari denied. Reported below: 938 F. 3d 69.

JUSTICE THOMAS, dissenting.

Under the Prison Litigation Reform Act of 1995 (PLRA), prisoners must exhaust administrative remedies before challenging prison conditions in federal court. 110 Stat. 1321–71, 42 U. S. C.